

Introductory Review Session

How to Law School

Presented by your Tutors for Professor
Lanham's Fall 2026 Civil Procedure course.

Friday, September 4th
1-3pm

Agenda

- Introduction
- Case Law
- Briefing
- IRAC
- Note-taking
- Outlining
- AI Tools
- Conclusion/General Tips
- Questions

Tutor Team



Lainey Brown



Emily O'Neill



Justin Nguyen



Austin Trevino



Christine Song



Sarah Williams

Case Law

- Case law = the body of law made by judicial opinions (as opposed to statutes/rules, like the FRCP, or constitutional text)
 - “Common Law”
- Under stare decisis, courts follow precedent from prior cases in their jurisdiction — binding on lower courts, persuasive elsewhere
- Why it matters: it shows how courts actually apply abstract rules to real facts, and how those standards evolve as courts distinguish, narrow, or overrule earlier decisions
- Illustrates the real life scenarios for which the law is necessary
 - i.e. the *Winters* test

from the MMPA. The CEQ also imposed additional notice, research, and reporting requirements.

In light of these actions, the Navy then moved to vacate the District Court's injunction with respect to the 2,200-yard shutdown zone and the restrictions on training in surface ducting conditions. The District Court refused to do so, 527 F.Supp.2d 1216 (2008), and the Court of Appeals affirmed. The Ninth Circuit held that there was a serious question regarding whether the CEQ's interpretation of the “emergency circumstances” regulation was lawful. Specifically, the court questioned whether there was a true “emergency” in this case, given that the Navy has been on notice of its obligation to comply with NEPA from the moment it first planned the SOCAL training exercises. 518 F.3d, at 681. The Court of Appeals concluded that the preliminary injunction was entirely predictable in light of the parties' litigation history. *Ibid.* The court also held that plaintiffs had established a likelihood of success on their claim that the Navy was required to prepare a full EIS for the SOCAL training exercises. *Id.*, at 693. The Ninth Circuit agreed with the District Court's holding that the Navy's EA—which resulted in a finding of no significant environmental impact—was “ cursory, unsupported by cited evidence, or unconvincing.” *Ibid.*⁴

The Court of Appeals further determined that plaintiffs had carried their burden of establishing a “possibility” of irreparable injury. Even under the Navy's own figures, the court concluded, the training exercises would cause 564 physical injuries to marine mammals, as well as 170,000 disturbances⁵ of marine mammals' behavior. *Id.*, at 696. Lastly, the Court of Appeals held that the balance of hardships

and consideration of the public interest weighed in favor of the plaintiffs. The court emphasized that the negative impact on the Navy's training exercises was “speculative,” since the Navy has never before operated under the procedures required by the District Court. *Id.*, at 698–699. In particular, the court determined that: (1) The 2,200-yard shutdown zone imposed by the District Court was unlikely to affect the Navy's operations, because the Navy often shuts down its MFA sonar systems during the course of training exercises; and (2) the power-down requirement during significant surface ducting conditions was not unreasonable because such conditions are rare, and the Navy has previously certified strike groups that had not trained under such conditions. *Id.*, at 699–702. The Ninth Circuit concluded that the District Court's preliminary injunction struck a proper balance between the competing interests at stake.

We granted certiorari, 554 U.S. 916, 128 S.Ct. 2964, 171 L.Ed.2d 883 (2008), and now reverse and vacate the injunction.

III

A

[1] A plaintiff seeking a preliminary injunction must establish that he is likely to succeed on the merits, that he is likely to suffer irreparable harm in the absence of preliminary relief, that the balance of equities tips in his favor, and that an injunction is in the public interest. See *Munaf v. Geren*, 553 U.S. 674, 689–690, 128 S.Ct. 2207, 2218–2219, 171 L.Ed.2d 1 (2008); *Amoco Production Co. v. Gambell*, 480 U.S. 531, 542, 107 S.Ct. 1396, 94 L.Ed.2d 542 (1987); *Weinberger v. Romero-Barcelo*, 456 U.S. 305, 311–312, 102 S.Ct. 1798, 72 L.Ed.2d 91 (1982).

4. The Ninth Circuit's discussion of the plaintiffs' likelihood of success was limited to their

NEPA claims. The court did not discuss claims under the CZMA or ESA.

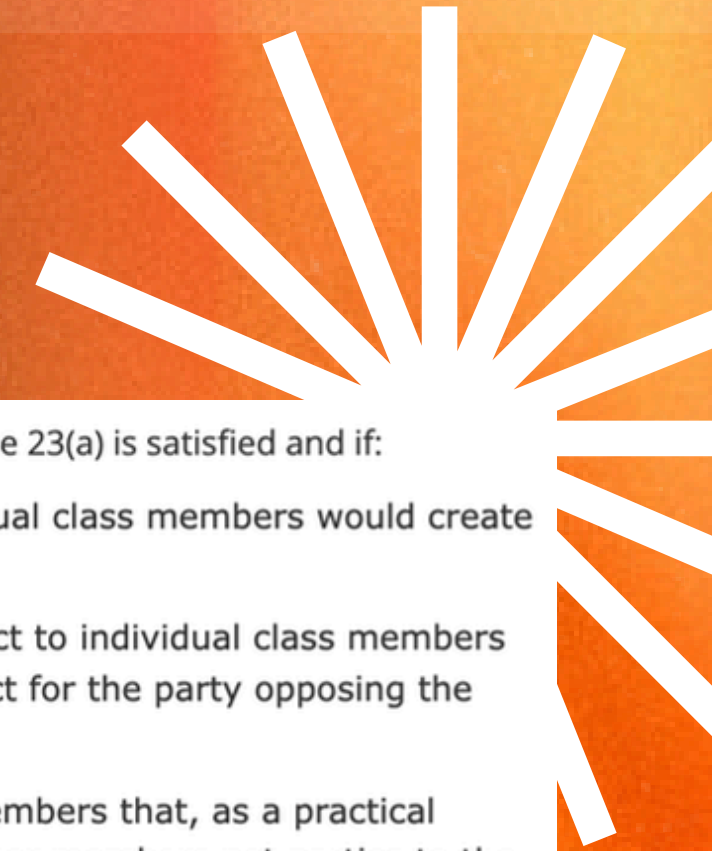
FRCP



- **Substantive law** = the actual rights and duties at stake in a case. In this course, that mostly comes from case law — later on, you'll also see it come from statutes (e.g., the statutes that create subject-matter jurisdiction)
- **Procedural law** = the rules governing how a case is litigated. In Civ Pro, that's the FRCP
- **Example - notice:**
 - FRCP Rule 4 is the procedural mechanism: it tells you how to serve notice.
 - Case Law is the substantive (constitutional) mechanism: it tells you what kind and quality of notice is required.
- You will have the FRCP on your exam, but this is **NOT** an excuse not to understand and learn the rules!
 - The exam is timed; you don't want to waste your precious seconds flipping through the FRCP to find the appropriate rule.

Procedural	Substantive
- Summons must give detailed notice about a case - Be signed by the clerk - Be 18 years old and a nonparty - Or a marshal or specially appointed person	- Must be reasonably calculated under all circumstances to notify (to apprise interested parties of the pendency of the action and afford them an opportunity to present their objections) & give chance for action (<i>Mullane</i>) - Personal service is always adequate – gold standard (<i>Mullane</i>) - May need supplements (<i>Green</i>) - Mail is often useful – but not always! (<i>Green</i>)

FRCP cont.



23 (b): Types of Class Actions

- (b)(1)
 - Risk of conflicting rulings, or impairing future plaintiffs' claims (ex: there is only one chunk of money to divide up)
- (b)(2)
 - Defendant has treated the whole class alike, and plaintiffs seek an injunction against Defendant for the class as a whole
- (b)(3)
 - Damages: common questions predominate, and class action is superior for fairness and efficiency; members can "opt out"

(b) TYPES OF CLASS ACTIONS. A class action may be maintained if Rule 23(a) is satisfied and if:

(1) prosecuting separate actions by or against individual class members would create a risk of:

(A) inconsistent or varying adjudications with respect to individual class members that would establish incompatible standards of conduct for the party opposing the class; or

(B) adjudications with respect to individual class members that, as a practical matter, would be dispositive of the interests of the other members not parties to the individual adjudications or would substantially impair or impede their ability to protect their interests;

(2) the party opposing the class has acted or refused to act on grounds that apply generally to the class, so that final injunctive relief or corresponding declaratory relief is appropriate respecting the class as a whole; or

(3) the court finds that the questions of law or fact common to class members predominate over any questions affecting only individual members, and that a class action is superior to other available methods for fairly and efficiently adjudicating the controversy. The matters pertinent to these findings include:

(A) the class members' interests in individually controlling the prosecution or defense of separate actions;

(B) the extent and nature of any litigation concerning the controversy already begun by or against class members;

(C) the desirability or undesirability of concentrating the litigation of the claims in the particular forum; and

(D) the likely difficulties in managing a class action.

Format:

1. **Procedural Posture/History:** What stage of litigation is the case in?
 - What court is it in? (Trial, Appellate, Supreme)
 - If the case is in the Appellate/Supreme Court, who appealed and why?
2. **Facts:** What are the legally relevant facts?
 - This is the story of the case: what actually happened between the plaintiff and the defendant?
3. **Legal Issue:** What legal question is the court trying to answer?
 - Usually has the word “whether” in it
4. **Holding/Reasoning:** What is the Court’s decision?
 - How did the court answer the legal question?
 - Why did the Court make the decision they made?
5. **Concurrences/ Dissents:** Did any of the judges disagree with the holding and/or reasoning? Why did they disagree?
6. **Legal Lesson (Important!) :** Key Takeaways and the Rule of Law you take away from the case
 - This is what you will use to make your Rule Statement for your IRAC

Case Briefing

What a Case Brief?

Case Briefing is how you will take notes on the cases you read and how you will learn the caselaw



Types of Case Briefs

Book Briefs

You highlight all of the sections of the case brief (covered in the previous slide) in the text of the case itself

- You can do some sort of highlighting color code or just label the parts

Pros:

- Takes less time

Cons:

- Usually less detailed
- Need a physical textbook or printed copy of case
- Might take you longer to find info for cold calls

Typed/Written Briefs

You read the case and then create your brief in a word document or write it by hand

Pros:

- More detailed
- Easier to find info for cold calls
- No physical copy of case needed

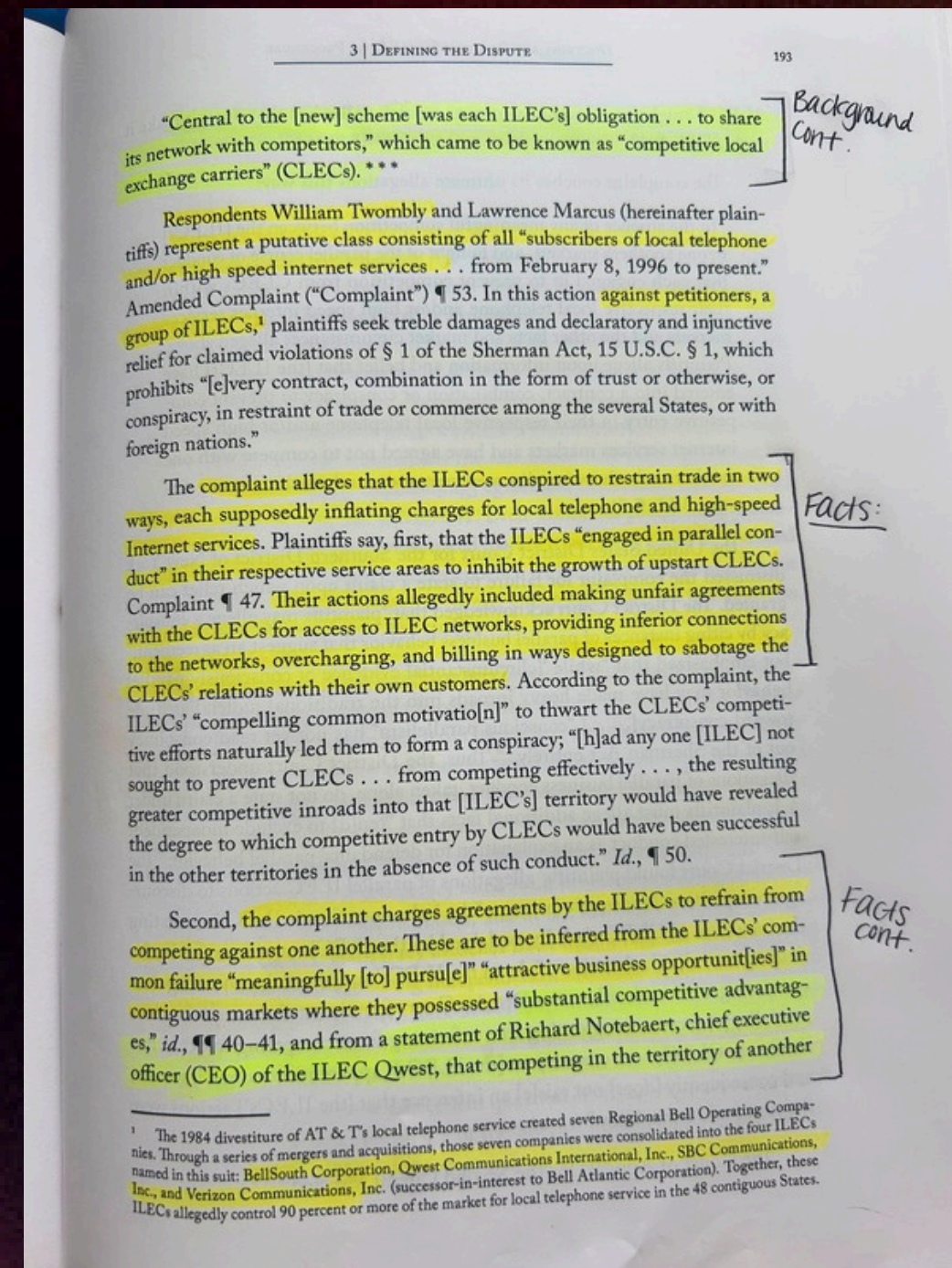
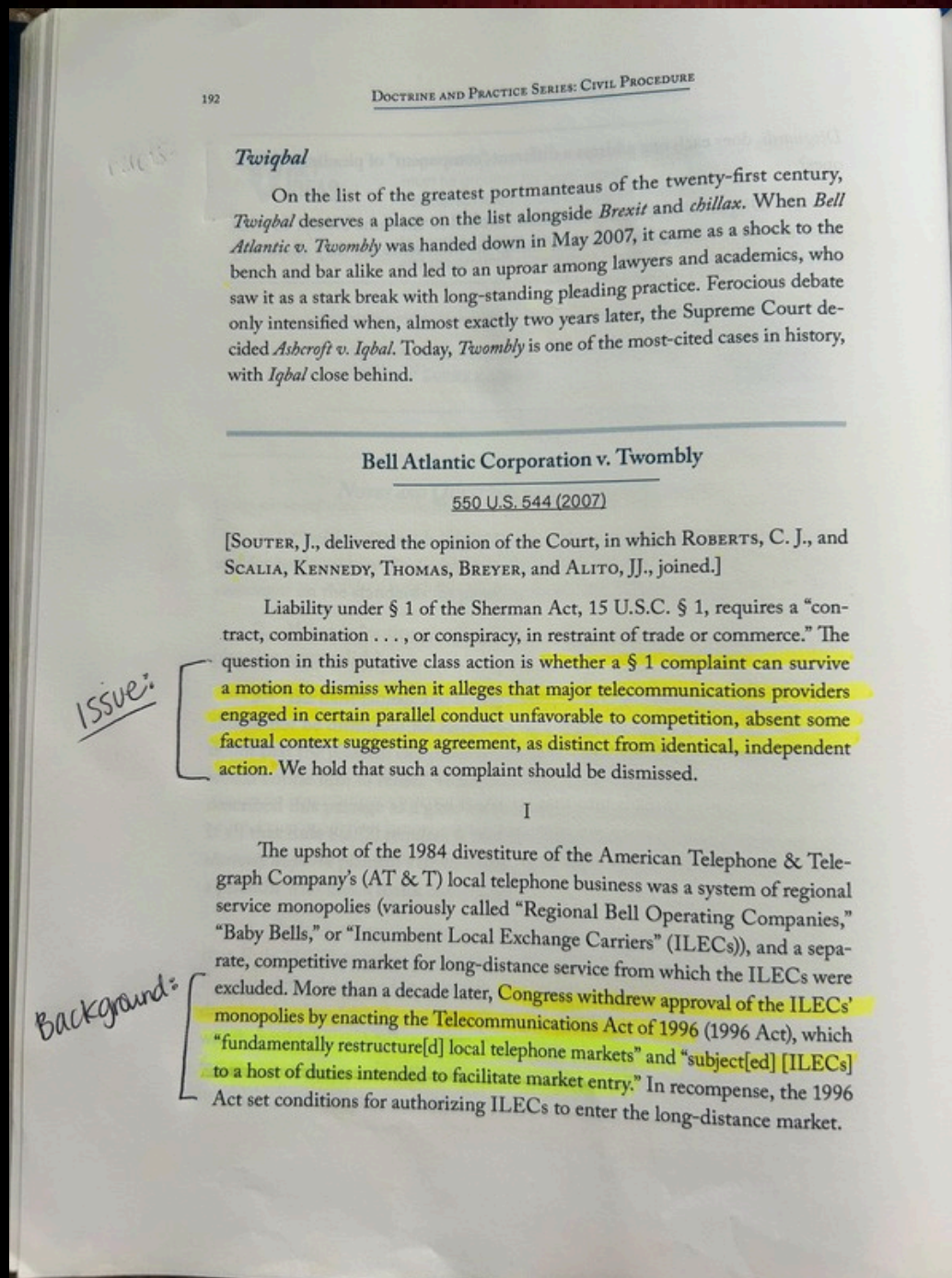
Cons:

- Takes more time

Case Brief Examples

Book Brief Example

Typed Brief Example



bell atlantic v. twombly		
1) Procedural Posture		Notes
Court case is in front of (who is hearing the appeal, ruling on the motion, etc.)	• Trial ct granted motion to dismiss under Rule 12(b)(6) [failure to state a claim] • The United States Court of Appeals for the Second Circuit overturned the dismissal. • The United States Supreme Court granted certiorari.	
2) Legal Issue(s)	Whether a complaint can survive motion to dismiss when it alleges [major corporations engaged in parallel conduct] (something) without factual evidence suggesting it?	
3) Facts	Twombly-- respondent & represents all telephone and internet users 1) Respondent said ILECs made unfair agreements with the smaller networks (CLECs) by giving them bad network connections and overcharging to sabotage them= parallel conduct 2) Also said ILECs made agreements to not compete with each other- was only founded on the fact that Respondent noticed ILECs seemed to dominate certain markets with no competition (regional monopolies) - They are asking for an injunction and triple damages (whatever \$\$ damage is found X 3) Bell Atlantic includes 4 ILECs:--- petitioner - Said the behavior was just good business; not the result of any agreements	Complaint said its suspicious that all the ILECs are all behaving the same way despite an act that was supposed to suppose to create a competitive relationship between them (circumstantial evidence)
4) Rules	Sherman Act- anti-monopoly act Telecommunications Act of 1996- separated ILECs telephone monopoly	

Lanham's IRAC

What is IRAC?

IRAC is the format you'll use to write hypos and the final exam – You'll certainly get more practice as you submit hypos and we'll review again as finals approaches, but here is the general structure.

Issue:

- What is the legal issue to be addressed in the fact pattern?
- What legal issue is the question asking you to analyze?

Rule

- What is the Rule or Law that applies to the issue?
- Are there any terms of art (specific legal terms) that need to be defined?
- Is there any relevant case law on the matter?

Analysis

- Pull the important facts of the scenario, and determine how the Rule would apply. – E.g.) In the case at hand, [facts] indicate that there is no irreparable harm to the plaintiff. . . Mullane test requires proof of irreparable harm. . .

Conclusion

- What would the ruling be?
- Who is likely to win? Is [x] argument likely to succeed?
- Conclusion will vary based on the specific question asked, but should reflect your work above.

IRAC Example

Question:

Discuss whether Winiger's can file a suit.

Issue: The issue is whether Winiger's case is within the Indiana Statute of Limitations.

Rule: The Statute of Limitations is the time where a cause of action may be file. Statutes of Limitations are either occurrence based or discovery base; here, the statute is occurrence based. The Statute of Limitation period may be tolled, or paused, in circumstances where the it is not reasonable for the claimant to be put on notice of the injury for a certain period of time.

Analysis: Here, Winiger's surgery where the injuries occurred in March 2007. This date puts Winiger's case squarely outside of the Statute of Limitation because Winiger filed her suit in March 2011, more than 2 years (4 years) from the alleged malpractice. *Winiger would argue that the Statute of Limitations is tolled. However, tolling is in the statute to allow a claimant to be reasonably put on notice of their injuries; Winiger was put on notice in July 2007 when her foot was standing up and if not that date, then October 2007 when she testified that she needed a second medical opinion.*

Conclusion: Therefore, Winiger cannot bring her claim for medical malpractice.



Note-taking

- Attend class!! Write what Lanham **says**
- Find a method of **organization** that works for you (e.g. color-coded pens, highlighters; paper vs. digital)
- Try to keep things in one place so you can find it later.
- For exams, although getting the rule down is important, you should refer back to cases and analogize the facts for those extra points.

Suggestions

Case briefing: Make a blank template

Cold calls: Anxiety can detract from your ability to take notes. Consider asking a friend for their notes and do the same for them.

Questions: Write them down wherever you take your class notes so once answered, you don't have to worry about moving it over. (Tabs, Word comments, use an easily searchable signal e.g. "!!Q")

- Write down your questions as you think of them, and go to office hours to find the answer!
 - Don't delay when it comes to your understanding of the material.
 - Lingering questions will make things harder down the line.
- **STUDY TIP:** rule synthesis/memorization (see below)

A preliminary injunction is equitable relief issued before trial to prevent irreparable harm and preserve the status quo pending final judgment. An injunction is ultimately at the discretion of the court. In determining whether to grant an injunction, courts apply the four-factor *Winter* test. Under that test the movant must show; likelihood of success on the merits, likelihood of irreparable harm if the injunction is not granted, balance of equities tips in the movants favor, and that public interest favors an injunction.

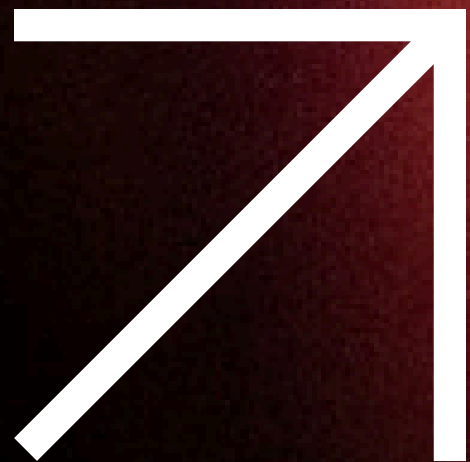


Studying Approaches

1. Outlining

2. Practice Problems/Exams

- Office Hours (Lanham, tutors)
- Flashcards
- Whiteboarding
- Study Group
- Library Resources



Example - Christine

(3) a demand for the relief sought, which may include relief in the alternative or different types of relief.

(d) Pleading to Be Concise and Direct; Alternative Statements; Inconsistency.

(1) *In General.* Each allegation must be simple, concise, and direct. No technical form is required. ≠ short

(e) Construing Pleadings. Pleadings must be construed so as to do justice.

↳ get the court to answer the question of the merits quickly : Did the Δ do the bad thing the complaint talks about

replevin. Both statutes provide for the issuance of writs ordering state agents to seize a person's possessions, simply upon the ex parte application of any other person who claims a right to them and posts a security bond. Neither statute provides for notice to be given to the possessor of the property, and neither statute gives the possessor an opportunity to challenge the seizure at any kind of prior hearing. The question is whether these statutory procedures violate the Fourteenth Amendment's guarantee that no State shall deprive any person of property without due process of law.

I

The appellant in No. 5039, Margarita Fuentes, is a resident of Florida. She purchased a gas stove and service policy from the Firestone Tire and Rubber Co. (Firestone) under a conditional sales contract calling for monthly payments over a period of time. A few months later, she purchased a stereophonic phonograph from the same company under the same sort of contract. The total cost of the stove and stereo was about \$500, plus an additional financing charge of over \$100. Under the contracts, Firestone retained title to the merchandise, but Mrs. Fuentes was entitled to possession unless and until she should default on her installment payments.

Fuentes (pl + app)
bought
stove + stereo

For more than a year, Mrs. Fuentes made her installment payments. But then, with only about \$200 remaining to be paid, a dispute developed between her and Firestone over the servicing of the stove. Firestone instituted an action in a small-claims court for repossession of both the stove and the stereo, claiming that Mrs. Fuentes had refused to make her remaining payments. Simultaneously with the filing of that action and before Mrs. Fuentes had even received a summons to answer its complaint, Firestone obtained a writ of replevin ordering a sheriff to seize the disputed goods at once.

payments > 1 yr.
dispute dev.
↓
Firestone filing
↓
writ of replevin
prior to even
receipt of summons

In conformance with Florida procedure, Firestone had only to fill in the blanks on the appropriate form documents and submit them to the clerk of the small-claims court. The clerk signed and stamped the documents and issued a writ of replevin. Later the same day, a local deputy sheriff and an agent of Firestone went to Mrs. Fuentes' home and seized the stove and stereo.

conformed to FL
procedure

Shortly thereafter, Mrs. Fuentes instituted the present action in a federal district court, challenging the constitutionality of the Florida prejudgment replevin procedures under the Due Process Clause of the Fourteenth Amendment.

Pl. challenging
constitutionality
under Due Process.

Example - Sarah

9/8 class notes

• sufficiency of the complaint: conley test

↳ legal sufficiency

↳ factual sufficiency

• plaintiffs pleading - Twombly

↳ issue one: UECs are leaving CECs out by price-fixing (alleging conspiracy) → parallel conduct = doing the exact same thing

↳ issue two: not competing against each other

↳ plaintiff produces circumstantial evidence to infer the complaint

↳ complaint must have enough facts that if true, gives plausible grounds to infer that defendant acted unlawfully

↳ enough to nudge from possible to probable (anything is possible but this strays from speculative to now this could happen in this context)

↳ must create reasonable expectation of finding wrongdoing in discovery, for complaint to continue to that point

question: does there have to be specific point of where in discovery to find? → no must have it in mind for what you access to in discovery

↳ mere allegation of parallel conduct is not enough to prove conspiracy (common business practice to act similarly to competition)

↳ concluding statement uses legal conclusion as fact (has to know how)

↳ allowed to give facts and then lead to legal conclusion



Outlines

- A personalized roadmap for the course that includes cases, legal rules, and notes
- Provides structure and organization for the law
- Your exam golden key
- THE GOLD IS IN THE PROCESS (your internalization/memorization)
 - Borrowing someone else's can't replace that benefit

TIPS

- Start early and do it regularly!
- Use the syllabus as a template for headings
- Your outline is your own: follow your own aesthetic/learning style
- Study it for finals! (print/notate/recitate/etc)





Example - Sarah

Federal Congressional Powers

Necessary & Proper Clause (NPC)

- Article 1 Section 8 Clause 18: grants congress the power: "to make all laws which shall be necessary and proper for carrying into execution the foregoing powers, and all other powers vested by this constitution in the gov of the US, or in any department or officer thereof"
- McCulloch v. Maryland (1819)- Marshall Court
 - *Rule statement:* Under Necessary & Proper Clause, congress has power to make laws as it deems necessary and proper to carry out an enumerated power
 - Held that congress has the implied power to incorporate a national bank because "necessary" means convenient or useful, rather than absolutely essential. Furthermore, Maryland could not tax the bank because the power to tax is the power to destroy
 - Clause functions to EXPAND (not limit) Congress's enumerated powers, but it must be combined with another power; in this case, power to tax and spend
 - Pretext passages: Justice Marshall promises that if congress passed laws under the pretext of its enumerated powers to accomplish unconstitutional objects, SCOTUS would strike them down



AI Tools

Do's:

- **Build practice prompts off his practice prompts**
- **Make it write in his voice (issue/fact spotting)**
- **Group quizzes**
- **Review packets from your own material**
- **Grade your IRAC against Lanham's model answer**
- **Create flow charts**
- **Practice cold-calls**
- **Organization**

Don'ts:

- **Use on practice problems**
- **Let it replace the textbook or class**
- **Use it for case briefs**
- **Memorize its rules**

AI Tools

CIVIL PROCEDURE REVIEW PACKET

Date: November 23, 2025

Topic: 1L Civil Procedure Comprehensive Review

Part I: Terminology Matching

Match the term on the left with the correct definition on the right.

Term	Definition
1. <i>Voir Dire</i>	A. A request to the court to reduce a jury's damage award (often handled under Rule 59).
2. Remittitur	B. Jurisdiction over a person's property (e.g., for claims about who owns the property).
3. In Rem Jurisdiction	C. The process of examining the jury and selecting jurors.
4. Interlocutory Appeal	D. The destruction or failure to preserve information relevant to anticipated litigation.
5. Spoliation	E. An appeal of a ruling by a trial court that is made before the trial itself has concluded.

Part II: True or False

Indicate whether the statement is True or False.

6. If a plaintiff files a complaint demanding exactly \$75,000.00 in a diversity suit, the amount in controversy requirement is satisfied.



LegalEd.ai

Conclusion

General advice from each of us

- Sarah: manage your time and priorities! don't forget your mental health! stay ahead!
- Christine: Sleep. Remind yourself why you came to law school. Say no to things.
- Emily: Everyone has a different learning style. If something works for you, keep doing it!
- Lainey: Don't compare yourself to others! Focus on the path ahead of YOU!
- Austin: Keep an open mind! Consider other perspectives, arguments, study methods, etc.
- Justin: You can learn something from anyone and everyone.

Questions?

General, Exam tips, etc

Thank You

COME TO OFFICE HOURSSSSSSSSSS